
2:00 PM LINE 9

25-CIV-00601

KEVIN RAMOS VS. SAN MATEO COUNTY TRANSIT DISTRICT, ET AL

KEVIN RAMOS
SAN MATEO COUNTY TRANSIT DISTRICT

PRO PER
DANIELLE K. LEWIS

SECOND MOTION TO COMPEL FURTHER RESPONSES FROM DEFENDANT SAN MATEO COUNTY TRANSIT DISTRICT
REGARDING THE PLAINTIFF'S REQUEST FOR PRODUCTION #1

TENTATIVE RULING:

For the reasons stated below, plaintiff Kevin Ramos' "Second Motion to Compel Further Responses from Defendant San Mateo County Transit District Regarding the Plaintiff's Request for Production #1," filed on August 11, 2026, is **DENIED**.

Defendant San Mateo County Transit District's August 20, 2026 Evidentiary Objections are **OVERRULED**. These objections go to weight, not admissibility. In any event, the objections are moot, given that the court is denying the motion.

A. Background

In February 2025, plaintiff served defendant with Requests for Production (RFPs) of Documents (Set One). (Aug. 20, 2026 Lewis Decl., ¶ 2.) On March 26, 2025, defendant served its initial responses to the RFPs, Set One. (*Ibid.*) Discovery was stayed from April through October 2025. (*Id.*, ¶ 3.) On November 21, 2025, defendant served verified supplemental responses to the RFPs, Set One. (*Id.*, ¶ 4.) On December 17, 2025, the court issued an order granting (in part) plaintiff's motion to compel defendant to provide further responses to the RFPs, Set One. (*Id.*, ¶ 5.) Specifically, the court granted plaintiff's motion to compel further responses to RFPs Nos. 1.1, 1.2, 1.4, 1.5, 1.6, 1.7, 1.8, 1.9, and 2.2, but denied the motion as to the remaining RFPs. (*Ibid.*) On February 11, 2026, defendant served (unverified) second supplemental responses to the RFPs, Set One, and on February 25, 2026, defendant served verifications for the second supplemental responses to the RFPs, Set One. (*Id.*, ¶ 6.)

On March 27, 2026, plaintiff filed a "second motion to compel further responses" to the RFPs, Set One, but apparently did not serve the motion. Defendant has provided evidence that it was not served with the March 27, 2026 motion (Lewis Decl., ¶¶ 13-14), and plaintiff did not file a proof of service or certificate of service, showing that the motion was served. (*Ibid.*) On August 11, 2026, plaintiff filed the present *amended* "second motion to compel further responses" to the RFPs, Set One, again without filing a proof of service. (*Id.*, ¶ 15.)

With the present motion, plaintiff again seeks to compel defendant to provide further responses to the plaintiff's RFPs, Set One, Nos. 1.1, 1.2, 1.4, 1.5, 1.6, 1.7, 1.8, 1.9, and 2.2. Defendant opposes the motion on several procedural and substantive grounds.

B. Procedural Issues

1. Page limit violation

Plaintiff filed an 18-page Memorandum of Points & Authorities (MPA) in support of the motion, which exceeds the 15-page limit. (Cal. Rules of Court, rule 3.1113(d).) Although plaintiff is unrepresented by counsel, he is obligated to comply with the rules of court. Going forward, if rule violations are repeated, the court may strike any non-conforming brief(s).

2. Non-compliance with Code of Civil Procedure, section 2031.310, subdivision (c) — the 45-day rule

Plaintiff has not complied with the 45-day rule under Code of Civil Procedure, section 2031.310, subdivision (c). On this ground alone, the motion is denied. Section 2031.310, subdivision (c), governs motions to compel further responses to requests for production of documents, and states:

Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.

(Code Civ. Proc., § 2031.310, subd. (c).)

The 45-day deadline is mandatory and jurisdictional; late-filed or late-served motions render the court without authority to rule on motion other than to deny them. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409-1410 (*Sexton*).) A moving party cannot cure notice defects by filing amended papers outside the 45-day period. (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 139.)

Here, defendant served supplemental responses to the RFPs, Set One, in November 2025, and then served its second supplemental responses in February 2026. (Lewis Decl. ¶¶ 4, 6-7, exhs. A-C.) By rule, the 45-day window to file and serve a motion to compel further responses expired no later than April 11, 2026. The motion that plaintiff filed in March 2026 was not served. (*Id.*, ¶¶ 13-15, exh. F.) Plaintiff filed the present amended motion on August 11, 2026, many months after the 45-day deadline expired. Accordingly, plaintiff waived his right to compel further responses. (*Sexton, supra*, 58 Cal.App.4th at pp. 1409-1410.)

3. Non-compliance with the Separate Statement Requirement

California Rules of Court, rule 3.1345(c) requires that the Separate Statement accompanying the motion to compel further responses include “the text of each response, answer, or objection, and any further responses or answers.” (Cal. Rules of Court, rule 1345(c); *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892-893.) Defendant served supplemental responses to the RFPs on November 21, 2025, and second supplemental responses on February 11, 2026 (with

verifications served on February 25, 2026). (Lewis Decl. ¶¶ 4, 6-7, exhs. A-C.) For RFPs Nos. 1.1, 1.2, 1.4, 1.5, 1.6, plaintiff's Separate Statement reproduces only defendant's original responses. Those original responses are no longer the operative responses. And RFP No. 1.9 does not appear anywhere in the Separate Statement. Thus, plaintiff's Separate Statement does not provide the relevant responses.

For at least the foregoing reasons, the motion is denied.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, defendant's counsel shall prepare a written order consistent with the court's ruling for the court's signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the "prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 10

25-CIV-01197 ZCA HOMES LLC VS. FELECIA A. JACKSON

ZCA HOMES LLC
FELECIA A. JACKSON

MARIE G. QUASHNOCK
THOMAS S. WROBEL

DEFENDANT FELICIA A. JACKSON'S DEMURRER TO PLAINTIFF ZCA HOMES LLC'S FIRST AMENDED COMPLAINT FOR SPECIFIC PERFORMANCE OF CONTRACT FOR SALE OF REAL PROPERTY; ALTERNATIVELY FOR DAMAGES FOR BREACH OF CONTRACT

TENTATIVE RULING:

As an initial matter, Department 28 is located at the Central Courthouse, Courtroom I, 800 North Humboldt Street, San Mateo, CA 94401. (*See* Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Defendant's Demurrer is **SUSTAINED**. Plaintiff's Request for Judicial Notice (RJN) is **GRANTED**.

A. Background

The First Amended Complaint (FAC) alleges that plaintiff's assignor offered to purchase the realty located at 219 Hillcrest Drive, Daly City, CA 94014 (the Property) from defendant for \$700,000 on January 24, 2025, and defendant accepted the offer. (FAC, ¶¶ 1 & 6, exh. 1.) Plaintiff then deposited \$5,010.00 of earnest money into escrow, but defendant breached the parties' contract by failing to close escrow. (*Id.*, ¶¶ 7-8.)

Defendant generally demurs to the FAC as to both (alternative) causes of action, asking that leave to amend be denied. (Code Civ. Proc., § 430.10, subd. (e).)

B. Legal Standards for Demurrer

"[I]t is well settled that a general demurrer admits the truth of all material factual allegations in the complaint [citation]; that the question of plaintiff's ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court [citations]; and that plaintiff need only plead facts showing that he may be entitled to some relief [citation]." (*John's Grill, Inc. v. The Hartford Financial Services Group, Inc.* (2024) 16 Cal.5th 1003, 1013 (*John's Grill*), quoting *Alcorn v. Ambro Engineering, Inc.* (1970) 2 Cal.3d 493, 496 (*Alcorn*).)

A court reviewing a demurrer accepts as true the facts alleged in the complaint as well as those of which it may take judicial notice (*John's Grill, supra*, 16 Cal.5th at p. 1008, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318), but does not "assume the truth of contentions, deductions or conclusions of law." (*Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967 (*Aubry*).)
